

25STCV38417 25STCV38417

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV38417 Hearing Date: July 29, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 29, 2026

Case Name: Koo, et al. v. Beverly Hills Properties, LLC, et al.

Case No.: 25STCV38417

Matter: Demurrer

Moving Party: Defendants Beverly Hills Properties, LLC and Rochelle Sterling

Responding Party: Plaintiffs Eun Sung Koo and Brian Sung Jeong

Notice: OK

Ruling: The Demurrer is sustained in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a landlord-tenant dispute.

Defendants Beverly Hills Properties, LLC and Rochelle Sterling now demur to the Complaint's fourth, sixth, seventh, eighth, ninth, and tenth causes of action for uncertainty and failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist., (1992) 2 Cal.4th 962, 967.)

The Demurrer is sustained as to the 6th and 8th causes of action, as Plaintiff concedes. Leave to amend is denied.

The Demurrer is sustained, without leave to amend, as to the tenth cause of action for declaratory relief as this claim impermissibly pertains to a past controversy. (See Osseous Techs. of Am., Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366.)

The Demurrer is sustained, with 20 days leave to amend, as to the claim for negligent misrepresentation for lack of specificity. There is no one allegation in which Plaintiff properly sets forth all of the "who, what, where, when, why, and how" of the representation.

The Demurrer is overruled as to the fourth cause of action for breach of the implied covenant of good faith and fair dealing, which is properly based on Defendants frustrating the benefits of the lease agreement by concealing known water/mold defects and withholding inspection reports.

The Demurrer is overruled as to the derivative 9th cause of action pursuant to the UCL.

In sum, the Demurrer is sustained as to the 6th, 8th, and 10th causes of action, without leave to amend, sustained as to the 7th cause of action, with 20 days leave to amend, but otherwise overruled.

Moving party to give notice.